

SOFTWARE SERVICE AGREEMENT

Master Services Agreement • MSA-2026-0472

Agreement Number	MSA-2026-0472	Effective Date	April 1, 2026
Document Version	V1	Contract Type	Software / SaaS Services

PROVIDER	CUSTOMER
Meridian Solutions, Inc. 1200 Innovation Drive, Suite 400 Austin, TX 78701 ("Provider")	Atlas Corp. 8500 Commerce Boulevard Chicago, IL 60606 ("Customer")

This Software Service Agreement (the “Agreement”) is entered into by and between the Provider and Customer identified above. The parties agree as follows:

1. DEFINITIONS

- 1.1 "Services" means the Meridian Workflow Automation Platform, including all modules, features, and updates made generally available during the Subscription Term.
- 1.2 "Subscription Term" means the period of twelve (12) months beginning on the Effective Date.
- 1.3 "Authorized Users" means employees, contractors, or agents of Customer who are authorized to access the Services, not to exceed fifty (50) users unless amended in writing.
- 1.4 "Customer Data" means all data, content, and information submitted by Customer or its Authorized Users to the Services.
- 1.5 "Documentation" means the user guides, online help, and other technical documentation provided by Provider for the Services.

2. SERVICES AND ACCESS

- 2.1 Provider grants Customer a non-exclusive, non-transferable right to access and use the Services during the Subscription Term, subject to the terms of this Agreement.
- 2.2 Customer may permit Authorized Users to access the Services. Customer is responsible for all activities conducted under its user accounts.
- 2.3 Provider shall make the Services available 24 hours a day, 7 days a week, except for scheduled maintenance windows. Provider shall use commercially reasonable efforts to provide at least 48 hours advance notice of scheduled maintenance.

3. SERVICE LEVEL AGREEMENT

- 3.1 Provider guarantees a monthly uptime percentage of 99.9% for the Services, measured as total minutes in the month minus downtime minutes, divided by total minutes in the month.
- 3.2 "Downtime" means periods when the Services are materially unavailable, excluding: (a) scheduled maintenance windows; (b) force majeure events; (c) failures of Customer's internet connectivity; (d) actions or inactions of Customer or its Authorized Users.
- 3.3 Service Credits: If monthly uptime falls below 99.9%, Customer shall receive service credits as follows:
 - 99.0% to 99.9%: 10% credit of monthly fees
 - 95.0% to 99.0%: 25% credit of monthly fees

- Below 95.0%: 50% credit of monthly fees

3.4 Service credits must be requested within thirty (30) days of the end of the month in which the downtime occurred. Credits are applied against future invoices and do not entitle Customer to a refund.

4. FEES AND PAYMENT

4.1 Customer shall pay Provider an annual subscription fee of \$180,000 (One Hundred Eighty Thousand Dollars), payable in quarterly installments of \$45,000 due on the first day of each quarter.

4.2 All fees are exclusive of applicable taxes, which Customer shall be responsible for paying.

4.3 Payment terms are Net 30 from the date of invoice. Late payments shall accrue interest at a rate of 1.5% per month or the maximum rate permitted by law, whichever is less.

4.4 Provider may increase fees upon renewal by providing written notice at least sixty (60) days prior to the end of the then-current Subscription Term. Fee increases shall not exceed 5% per year.

5. CUSTOMER DATA AND PRIVACY

5.1 Customer retains all right, title, and interest in and to Customer Data. Provider acquires no rights in Customer Data except as necessary to provide the Services.

5.2 Provider shall maintain commercially reasonable administrative, physical, and technical safeguards to protect Customer Data from unauthorized access, use, or disclosure.

5.3 Provider shall not access Customer Data except as necessary to provide the Services, respond to support requests, or as required by law.

5.4 Upon termination of this Agreement, Provider shall make Customer Data available for export for a period of thirty (30) days. After such period, Provider shall delete Customer Data from its systems within sixty (60) days.

6. INTELLECTUAL PROPERTY

6.1 Provider retains all right, title, and interest in and to the Services, including all intellectual property rights therein. This Agreement does not convey any ownership rights in the Services to Customer.

6.2 Customer grants Provider a non-exclusive, worldwide license to use Customer Data solely to the extent necessary to provide the Services and as described in this Agreement.

6.3 Provider may use aggregated, anonymized data derived from Customer's use of the Services for purposes of improving the Services, provided such data cannot reasonably identify Customer or any individual.

7. CONFIDENTIALITY

7.1 Each party agrees to maintain the confidentiality of the other party's Confidential Information and not to disclose it to third parties without prior written consent.

7.2 "Confidential Information" means all non-public information disclosed by one party to the other that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

7.3 Confidential Information does not include information that: (a) is or becomes publicly known through no fault of the receiving party; (b) was known to the receiving party prior to disclosure; (c) is independently developed by the receiving party; (d) is rightfully received from a third party without restriction.

7.4 Confidentiality obligations shall survive termination of this Agreement for a period of three (3) years.

8. WARRANTIES

8.1 Provider warrants that the Services will perform materially in accordance with the Documentation during the Subscription Term.

8.2 Provider warrants that it will provide the Services in a professional and workmanlike manner consistent with industry standards.

8.3 EXCEPT AS EXPRESSLY SET FORTH IN THIS SECTION, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

9. LIMITATION OF LIABILITY

9.1 NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT.

9.2 EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CUSTOMER DURING THE TWELVE (12) MONTH PERIOD PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.3 The limitations in this Section 9 shall not apply to: (a) breaches of Section 7 (Confidentiality); (b) Provider's indemnification obligations; (c) willful misconduct or gross negligence.

10. INDEMNIFICATION

10.1 Provider shall indemnify, defend, and hold harmless Customer from any third-party claims alleging that Customer's use of the Services infringes such third party's intellectual property rights.

10.2 Customer shall indemnify, defend, and hold harmless Provider from any third-party claims arising from Customer Data or Customer's use of the Services in violation of this Agreement.

10.3 The indemnifying party's obligations are conditioned on the indemnified party: (a) providing prompt written notice; (b) granting sole control of the defense and settlement; (c) providing reasonable cooperation.

11. TERM AND TERMINATION

11.1 This Agreement commences on the Effective Date and continues for the initial Subscription Term. It shall automatically renew for successive twelve (12) month periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

11.2 Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of the breach.

11.3 Provider may suspend access to the Services if Customer fails to pay undisputed fees within fifteen (15) days of receiving written notice of non-payment.

11.4 Upon termination, Customer's right to access the Services shall immediately cease, subject to the data export provisions of Section 5.4.

12. GENERAL PROVISIONS

12.1 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to conflicts of law principles.

12.2 Dispute Resolution: Any disputes arising under this Agreement shall first be submitted to good-faith negotiation between senior executives of each party for a period of thirty (30) days. If unresolved, disputes shall be submitted to binding arbitration in Austin, Texas under the rules of the American Arbitration Association.

12.3 Assignment: Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement in connection with a merger, acquisition, or sale of all or substantially all of its assets.

12.4 Force Majeure: Neither party shall be liable for delays or failure to perform resulting from causes beyond its reasonable control, including natural disasters, war, terrorism, strikes, government actions, or failure of internet infrastructure.

12.5 Entire Agreement: This Agreement constitutes the entire agreement between the parties and supersedes all prior or contemporaneous agreements, proposals, or representations regarding the subject matter herein.

12.6 Amendments: This Agreement may be amended only by a written instrument signed by authorized representatives of both parties.

12.7 Notices: All notices shall be in writing and delivered to the addresses set forth above, or to such other address as a party may designate in writing.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

MERIDIAN SOLUTIONS, INC.

By: _____

Name: Catherine Harwell

Title: Chief Revenue Officer

Date: March 28, 2026

ATLAS CORP.

By: _____

Name: Robert Tanaka

Title: VP of Information Technology

Date: March 30, 2026